

VENDOR MASTER AGREEMENT

Contract Reference No.: KOS-VMA-2026-0882

This **VENDOR MASTER AGREEMENT** (the "Agreement") is entered into as of **August 1, 2026** (the "Effective Date"), by and between **KnowledgeOS Inc.**, a Delaware corporation having its principal place of business at 100 Enterprise Way, Suite 500, San Francisco, CA 94105 ("Company" or "KnowledgeOS"), and **Apex Enterprise Solutions LLC**, a Delaware limited liability company having its principal place of business at 500 Technology Parkway, Suite 200, Austin, TX 78701 ("Vendor"). Company and Vendor may each individually be referred to as a "Party" and collectively as the "Parties."

RECITALS

WHEREAS, KnowledgeOS is an enterprise software provider operating the KnowledgeOS Enterprise knowledge management and artificial intelligence platform;

WHEREAS, Vendor possesses specialized expertise, software technology, cloud infrastructure support, professional services, or consulting resources required by KnowledgeOS;

WHEREAS, KnowledgeOS desires to engage Vendor, and Vendor agrees to render services, deliver work products, and supply technology solutions to KnowledgeOS from time to time pursuant to the terms and conditions set forth herein.

NOW, THEREFORE, in consideration of the mutual covenants and promises contained herein and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. AGREEMENT OVERVIEW & STRUCTURE

1.1 Master Structure. This Agreement establishes the general terms and conditions under which Vendor shall provide Services (as defined herein) and Deliverables (as defined herein) to KnowledgeOS. Specific services, project terms, fee schedules, and timelines will be detailed in individual Statements of Work ("SOW") or Service Orders executed under this Agreement.

1.2 Priority of Documents. In the event of any conflict or inconsistency between the terms of this Agreement and any SOW or exhibit, the terms of this Agreement shall control unless an SOW expressly states that specific provisions of this Agreement are overridden for that SOW by referencing section numbers.

2. SCOPE OF SERVICES & WORK ORDERS

2.1 Provision of Services. Vendor agrees to perform the services ("Services") and furnish all reports, software modules, data integrations, hardware, documentation, and work product ("Deliverables") described in executed SOWs in accordance with the standards of performance set forth herein.

2.2 Standard of Performance. Vendor represents and warrants that all Services shall be performed in a professional, workmanlike manner by qualified and trained personnel, in strict compliance with industry standards, applicable laws, and KnowledgeOS specifications.

2.3 Change Control Procedure. Either Party may propose changes to the Scope of Services under an SOW. No change shall be binding unless documented in a written Change Order signed by authorized representatives of both Parties outlining adjusted costs, timelines, and technical requirements.

3. PAYMENT TERMS & INVOICING

3.1 Fees & Compensation. KnowledgeOS shall pay Vendor the fees specified in the applicable SOW ("Fees"). Fees shall remain fixed for the duration of each SOW unless explicit escalation clauses are mutually agreed upon in writing.

3.2 Invoicing Schedule. Vendor shall submit detailed itemized invoices monthly in arrears or upon milestone completion as stipulated in the relevant SOW. Invoices must reference the applicable Purchase Order (PO) number and SOW ID.

3.3 Payment Terms. Undisputed invoice amounts shall be payable within **Net 45 Days** from the date of receipt of a valid, correct invoice. All payments shall be remitted in United States Dollars (USD) via wire transfer or ACH.

3.4 Invoice Disputes. KnowledgeOS reserves the right to withhold payment of any invoice amounts disputed in good faith. KnowledgeOS shall notify Vendor in writing of any dispute within fifteen (15) business days of invoice receipt. Payment of undisputed portions shall proceed normally.

3.5 Taxes. Vendor shall be solely responsible for all sales, use, excise, VAT, income, and payroll taxes applicable to its business operations, workforce, and performance under this Agreement.

4. CONFIDENTIALITY & DATA PROTECTION

4.1 Definition of Confidential Information. "Confidential Information" means all non-public information disclosed by one Party ("Disclosing Party") to the other Party ("Receiving Party"), whether orally, visually, or in writing, including proprietary code, system architecture, trade secrets, business strategies, customer data, security protocols, and financial data.

4.2 Obligation of Non-Disclosure. Receiving Party agrees to maintain strict confidentiality of Disclosing Party's Confidential Information using at least the same degree of care it uses for its own sensitive information (and not less than reasonable care), and shall not disclose such information to any third party without prior written consent.

4.3 Permitted Disclosures. Receiving Party may disclose Confidential Information only to its employees, subcontractors, and legal/financial advisors who have a need to know and are bound by confidentiality obligations at least as restrictive as those herein.

4.4 Data Security & Privacy (GDPR/CCPA Compliance). To the extent Vendor processes any personal data or KnowledgeOS system data, Vendor shall maintain robust administrative, physical, and technical safeguards. Vendor agrees to execute KnowledgeOS's standard Data Processing Addendum (DPA) and comply with all applicable privacy regulations including GDPR, CCPA, and SOC 2 Type II compliance standards.

5. INTELLECTUAL PROPERTY RIGHTS

5.1 Pre-Existing IP. Each Party shall retain all right, title, and interest in and to its pre-existing intellectual property, technology, patents, trademarks, and trade secrets ("Pre-Existing IP").

5.2 Work for Hire / Assignment of Deliverables. Vendor agrees that all custom software, scripts, workflows, documentation, designs, and Deliverables created or developed by Vendor (alone or jointly) specifically for KnowledgeOS under any SOW shall be deemed "works made for hire." To the extent any Deliverable does not qualify as a work made for hire, Vendor hereby irrevocably assigns and transfers to KnowledgeOS all right, title, and ownership interest worldwide in and to such Deliverables, including all intellectual property rights therein.

5.3 Vendor Technology License. To the extent Vendor's Pre-Existing IP or tools are incorporated into any Deliverable, Vendor hereby grants KnowledgeOS a perpetual, irrevocable, worldwide, royalty-free, non-exclusive license to use, reproduce, modify, and distribute such Vendor IP solely as necessary for KnowledgeOS to fully utilize the Deliverables.

6. SERVICE LEVELS & AVAILABILITY (SLA)

6.1 Uptime Commitment. For any ongoing cloud services, infrastructure support, or SaaS integrations provided by Vendor, Vendor guarantees an operational uptime commitment of **99.9%** during each calendar month, excluding scheduled maintenance windows.

PRIORITY LEVEL	DESCRIPTION & INCIDENT TYPE	TARGET INITIAL RESPONSE	TARGET RESOLUTION TIME
P1 - Critical	Complete system outage, core functionality down, or severe security breach.	< 15 Minutes	< 2 Hours
P2 - High	Major performance degradation or severe feature degradation affecting multiple users.	< 1 Hour	< 6 Hours
P3 - Medium	Minor functionality issue or non-critical system error with reasonable workaround.	< 4 Hours	< 24 Hours
P4 - Low	General inquiry, minor administrative request, or cosmetic defect.	< 1 Business Day	< 3 Business Days

6.2 SLA Credits. If Vendor fails to meet monthly service level targets, KnowledgeOS shall be entitled to service credits calculated as a percentage of the monthly service fee, ranging from 5% (for system uptime between 99.0% and 99.8%) up to 25% (for system uptime below 95.0%).

7. WARRANTIES & REPRESENTATIONS

7.1 Mutual Warranties. Each Party represents and warrants that it has full corporate power and authority to enter into and perform this Agreement, and that execution does not violate any other contract or statutory requirement.

7.2 Non-Infringement Warranty. Vendor warrants that the Services, Deliverables, and technology provided under this Agreement do not and will not infringe, misappropriate, or violate any patent, copyright, trademark, trade secret, or proprietary right of any third party.

7.3 Malicious Code Warranty. Vendor warrants that all software and technical deliverables will be delivered free of viruses, malware, trojan horses, ransomware, backdoors, or other malicious code designed to disrupt, disable, or modify systems or compromise data security.

8. LIMITATION OF LIABILITY & INDEMNIFICATION

8.1 Consequential Damages Waiver. EXCEPT FOR BREACHES OF CONFIDENTIALITY (SECTION 4), INTELLECTUAL PROPERTY INFRINGEMENT OBLIGATIONS (SECTION 5), OR INDEMNIFICATION OBLIGATIONS (SECTION 8.3), NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR LOSS OF DATA.

8.2 Aggregate Liability Cap. EXCEPT FOR EXPRESS EXCLUSIONS NOTED IN SECTION 8.1, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL BE LIMITED TO THE TOTAL FEES PAID OR PAYABLE BY KNOWLEDGEOS TO VENDOR IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM.

8.3 Vendor Indemnification. Vendor agrees to defend, indemnify, and hold harmless KnowledgeOS, its affiliates, directors, officers, employees, and agents from and against any third-party claims, liabilities, losses, damages, costs, and expenses (including reasonable attorneys' fees) arising out of or resulting from: (a) Vendor's breach of warranties under Section 7; (b) any claim that the Deliverables infringe third-party IP rights; or (c) gross negligence or willful misconduct of Vendor or its sub-contractors.

9. TERM AND TERMINATION

9.1 Term. This Agreement shall commence on the Effective Date and shall remain in full force and effect for an initial period of **three (3) years**, unless earlier terminated as provided herein. Thereafter, it shall automatically renew for successive one (1) year terms unless either Party provides written notice of non-renewal at least sixty (60) days prior to expiration.

9.2 Termination for Convenience. KnowledgeOS may terminate this Agreement or any individual SOW, in whole or in part, for convenience without cause by providing thirty (30) days' written notice to Vendor.

9.3 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party materially breaches any provision of this Agreement and fails to cure such breach within thirty (30) days after receiving written notice specifying the breach.

9.4 Post-Termination Obligations. Upon termination or expiration, Vendor shall immediately cease performing Services, return or destroy all KnowledgeOS Confidential Information and data, and deliver all completed or in-progress Deliverables. KnowledgeOS shall pay Vendor for all compliant Services performed up to the effective termination date.

10. DISPUTE RESOLUTION & ARBITRATION

10.1 Executive Escalation. In the event of any dispute, controversy, or claim arising out of or relating to this Agreement, designated senior executives from each Party shall meet in good faith within fifteen (15) days of notice to negotiate a resolution.

10.2 Binding Arbitration. If executive negotiations fail to resolve the dispute within thirty (30) days, the dispute shall be finally settled under the Rules of Arbitration of the American Arbitration Association (AAA) by a single neutral arbitrator appointed in accordance with said rules. The seat of arbitration shall be San Francisco, California. The arbitration award shall be final and binding on both Parties.

11. GOVERNING LAW & MISCELLANEOUS PROVISIONS

11.1 **Governing Law and Venue.** This Agreement shall be governed by, construed, and enforced in accordance with the laws of the **State of California**, without regard to its conflict of law principles.

11.2 **Independent Contractor.** Vendor is an independent contractor. Nothing in this Agreement creates a partnership, joint venture, agency, or employment relationship between the Parties.

11.3 **Severability & Waiver.** If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. The failure to enforce any right shall not constitute a waiver of future enforcement.

11.4 **Entire Agreement.** This Agreement, along with all attached SOWs and Exhibits, constitutes the entire understanding between the Parties regarding its subject matter and supersedes all prior negotiations, representations, or agreements.

12. EXECUTION & SIGNATURES

IN WITNESS WHEREOF, the Parties hereto have caused this Vendor Master Agreement to be executed by their duly authorized representatives as of the Effective Date.

FOR KNOWLEDGEOS INC. (COMPANY)

By: _____

Name: Marcus Vance

Title: Chief Operating Officer

Date: August 1, 2026

Authorized Signature

FOR APEX ENTERPRISE SOLUTIONS LLC
(VENDOR)

By: _____

Name: Eleanor Sterling

Title: Chief Executive Officer

Date: August 1, 2026

Authorized Signature